

California law provides strong protections for residential tenants, especially in areas like rent control, habitability, and eviction procedures. This guide outlines your core rights as a renter in California.

Your right to a habitable home is guaranteed under Civil Code Section 1941. This means your landlord must maintain the rental unit in a condition fit for human occupation. Essential services like heat, running water, electricity, and plumbing must function properly. The unit must be weatherproof, free from excessive mold or pests, and structurally sound. If something breaks or becomes unsafe, you must notify your landlord in writing. They generally have 30 days to make repairs, though urgent issues like no heat in winter or no running water require faster action.

Security deposits in California are strictly regulated. For unfurnished units, landlords may collect no more than two months' rent as a deposit. For furnished units, the limit is three months' rent. Within 21 days after you move out, your landlord must return your full deposit or provide an itemized written statement explaining any deductions, along with receipts for repairs over \$125. You have the right to request a pre-move-out inspection to address potential deductions in advance.

Rent increases are limited under the Tenant Protection Act of 2019 (AB 1482). Most tenants in California are protected by a statewide rent cap: landlords may increase rent by no more than 5% plus the local Consumer Price Index (CPI), with a maximum total increase of 10% per year. This law applies to buildings over 15 years old, excluding single-family homes unless owned by corporations. Local rent control ordinances in cities like Los Angeles, San Francisco, and Oakland may offer even stronger protections.

Evictions require "just cause" under AB 1482. This means your landlord cannot evict you simply because your lease ended or they want to raise the rent. Valid reasons include nonpayment of rent, violation of lease terms, nuisance, or the owner moving in (with proper notice and relocation assistance in some cases). No-cause evictions are illegal for most tenants. If you receive an eviction notice, do not ignore it—seek legal help immediately.

Retaliation is prohibited. If you exercise your legal rights—such as requesting repairs, joining a tenant union, or complaining to a government agency—your landlord cannot raise your rent, reduce services, or threaten eviction in response. Such actions are presumed retaliatory if they occur within 180 days of your protected activity.

For assistance, contact your local legal aid organization, the California Department of Consumer Affairs, or LawHelpCA.org. You are not alone—many resources exist to help you stay housed and safe.

